

Senate File 646

S-3163

1 Amend the amendment, S-3150, to Senate File 646, as follows:

2 1. Page 7, line 15, by striking <one hundred fifty> and
3 inserting <two hundred>

4 2. Page 25, by striking lines 2 through 8 and inserting
5 ~~<However, cattle exposed to or infected with tuberculosis shall~~
6 ~~not be destroyed without the owner's consent, unless there~~
7 ~~are sufficient moneys to reimburse the owner for the cattle,~~
8 ~~which may be paid as an expense authorized as provided in~~
9 ~~section 163.15, from moneys in the brucellosis and tuberculosis~~
10 ~~eradication fund created in section 165.18, or from moneys made~~
11 ~~available by the United States department of agriculture.>~~

12 3. Page 25, before line 9 by inserting:

13 <Sec. _____. Section 163.15, subsection 1, Code 2025, is
14 amended to read as follows:

15 ~~1-. If the secretary of agriculture determines that the~~
16 ~~outbreak of the infectious or contagious disease tuberculosis~~
17 ~~among an animal population constitutes a threat to the general~~
18 ~~welfare or the public health of the inhabitants of this state,~~
19 ~~the secretary shall formulate a program of eradication which~~
20 ~~shall include the condemnation and destroying of the animals~~
21 ~~exposed to or afflicted with the disease tuberculosis. The~~
22 ~~program of eradication shall provide for the indemnification~~
23 ~~of owners of the livestock under this section, if there are no~~
24 ~~other sources of indemnification. The program shall not be~~
25 ~~effective until the program has been approved by the executive~~
26 ~~council.~~

27 Sec. _____. Section 163.15, subsection 2, Code 2025, is
28 amended by striking the subsection.

29 Sec. _____. Section 163A.12, Code 2025, is amended to read as
30 follows:

31 **163A.12 Owner requesting test.**

32 If the owner requests the department to inspect and test
33 breeding swine for brucellosis, and agrees to comply with
34 the rules made by the department under [section 163A.9](#), the
35 department may designate a veterinarian to make an inspection

1 and test, with the expense to be paid as provided in section
2 164.6 for cattle brucellosis testing, ~~but only to the extent~~
3 ~~the funds provided in that section are not required for the~~
4 ~~cattle testing program.~~>

5 4. Page 25, by striking lines 17 through 20 and inserting
6 <section 164.4, the expense of the inspection and test shall
7 may be borne by the United States department of agriculture,
8 ~~or by the department, or by the brucellosis and tuberculosis~~
9 ~~eradication fund or any combination of these sources.~~>

10 5. By striking page 25, line 21, through page 26, line 8,
11 and inserting:

12 <Sec. _____. Section 164.21, subsection 2, Code 2025, is
13 amended to read as follows:

14 2. The owner shall may be indemnified ~~to the extent~~
15 ~~that money is available in the brucellosis and tuberculosis~~
16 ~~eradication fund as created in [section 165.18](#) and~~
17 ~~indemnification is also made by the United States department~~
18 ~~of agriculture. However, if the United States department of~~
19 ~~agriculture is unable to indemnify the owner, the department~~
20 ~~may indemnify the owner, if money is available.~~

21 Sec. _____. Section 164.21, subsection 3, Code 2025, is
22 amended by striking the subsection.

23 Sec. _____. Section 165.2, subsection 1, Code 2025, is amended
24 to read as follows:

25 1. The state of Iowa is declared to be and is established as
26 an accredited area for the eradication of bovine tuberculosis
27 from the dairy and breeding cattle of the state. It shall be
28 the duty of the department to eradicate bovine tuberculosis in
29 all of the counties of the state in the manner provided by law
30 as it appears in [this chapter](#). The department shall proceed
31 with the examination, including the tuberculin test, of all
32 such cattle as rapidly as practicable and as is consistent
33 with efficient work, ~~and as funds are available for paying the~~
34 ~~indemnities as provided by law.~~

35 Sec. _____. Section 165.10, Code 2025, is amended to read as

1 follows:

2 **165.10 Examination by department.**

3 The department may at any time, on its own motion, make an
4 examination of any herd, ~~and in case animals are destroyed,~~
5 ~~the appraisement and payment shall be made as provided in this~~
6 ~~chapter.~~>

7 6. Page 27, after line 22 by inserting:

8 <Sec. _____. Section 165.26, Code 2025, is amended to read as
9 follows:

10 **165.26 Permitting test.**

11 Every owner of dairy or breeding cattle in the state shall
12 permit the owner's cattle to be tested for tuberculosis as
13 provided in [this chapter](#), and shall confine the cattle in a
14 proper place so that the examination and test can be applied.
15 If the owner refuses to so confine the cattle the department
16 may employ sufficient help to properly confine them and the
17 expense of such help shall be paid by the owner ~~or deducted~~
18 ~~from the indemnity if any is paid.~~ Such owner shall comply
19 with all the requirements for the establishment and maintenance
20 of a tuberculosis-free accredited herd.>

21 7. Page 27, after line 26 by inserting:

22 <Sec. _____. REPEAL. Sections 163.16, 165.6, and 165.8, Code
23 2025, are repealed.>

24 8. By renumbering as necessary.

TOM SHIPLEY